

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 11, 2026
8:30 AM/1:30 PM

2. JARROD ANDREASEN V. BRANDI ANDREASEN

25FL0567

On March 10, 2026, Petitioner filed a Request for Order (RFO) seeking to compel Respondent's Preliminary Declaration of Disclosure (PDD) and sanctions. All required documents were served on March 12th.

Respondent filed and served her Responsive Declaration to Request for Order, her Income and Expense Declaration, and her Declaration Regarding Service of Declaration of Disclosure on May 19th.

Petitioner seeks an order compelling Respondent's PDD and sanctions in the amount of \$2,500 pursuant to Family Code § 2107. Respondent opposes the requests and cites administrative issues as the cause of the delay in completing the PDDs.

The court finds the motion to compel is moot as Respondent has already served her PDD.

Regarding the request for sanctions, the request is denied as it does not appear that Respondent acted in bad faith in her delay of completing and serving her PDD.

While Respondent's actions were not intentional, it still did result in the filing of the present RFO. For that reason, the court does believe it would be fair to direct to Respondent to prepare the FOAH instead of Petitioner despite the fact that he is the moving party. As such, Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #2: THE COURT FINDS THE MOTION TO COMPEL IS MOOT AS RESPONDENT HAS ALREADY SERVED HER PDD.

REGARDING THE REQUEST FOR SANCTIONS, THE REQUEST IS DENIED AS IT DOES NOT APPEAR THAT RESPONDENT ACTED IN BAD FAITH IN HER DELAY OF COMPLETING AND SERVING HER PDD.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR

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BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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3. DEREK BYRNE V. CHRISTINA BYRNE

22FL0036

On March 10, 2026, Petitioner filed a Request for Order seeking child support orders. He filed his Income and Expense Declaration concurrently therewith. All required documents were served on March 27, 2026.

The Department of Child Support Services (DCSS) filed its Responsive Declaration to Request for Order on April 1st. It was served on March 30th.

Petitioner filed and served his updated Income and Expense Declaration on May 21st.

Respondent filed her Responsive Declaration to Request for Order and her Income and Expense Declaration on May 27th however there is no Proof of Service for either document therefore the court cannot consider them.

Because DCSS is providing child support enforcement services in this matter, the issue of child support is continued to the DCSS calendar in Department 10 on Monday, August 10th at 8:30 AM to be heard by the child support commissioner in accordance with Family Code § 4251.

TENTATIVE RULING #3: BECAUSE DCSS IS PROVIDING CHILD SUPPORT ENFORCEMENT SERVICES IN THIS MATTER, THE ISSUE OF CHILD SUPPORT IS CONTINUED TO THE DCSS CALENDAR IN DEPARTMENT 10 ON MONDAY AUGUST 10TH AT 8:30 AM TO BE HEARD BY THE CHILD SUPPORT COMMISSIONER IN ACCORDANCE WITH FAMILY CODE § 4251.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.